

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

AHMED ELSHERIF

Plaintiff,

X

Index #:

SUMMONS

-against-

**THE CITY OF NEW YORK
POLICE OFFICERS DAMARR MCBEAN
SHILED # 2490; POLICE OFFICER CHRISTOPHER
MCDERMOTT; LT. MARIA SALAS;
SGT WRIGHT; JANE DOE NUMBERS 1-10
OF THE 13TH PRECINCT AND
ERIN CASSIDY**

Defendants.

X

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve the Plaintiff a copy of your answer, or if the complaint is served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within twenty (20) days after service, exclusive of this date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the state of New York); and in case of your failure to appear or answer the Plaintiff's complaint, judgment will be taken against you by default for the relief demanded therein.

Plaintiff designates New York County as the place of venue based on the place of occurrence.

Dated: New York, NY 10007
February 22, 2017



Ronald P. Hart, Esq.
Attorney for the Plaintiff
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New York, NY 10007
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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

AHMED ELSHERIF

X

Index #:

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK
POLICE OFFICERS DAMARR MCBEAN
SHILED # 2490; POLICE OFFICER CHRISTOPHER
MCDERMOTT; LT. MARIA SALAS
SGT. WRIGHT; JANE DOE NUMBERS 1-10
OF THE 13TH PRECINCT AND
ERIN CASSIDY

Defendants.

X

NOW COMES the Plaintiff, **AHMED ELSHERIF**, by and through his attorney,
RONALD P. HART, P.C., as and for his complaint against the Defendants, and
respectfully shows to this court and allege as follows:

PARTIES:

1. That the Plaintiff, **AHMED ELSHERIF** (Hereinafter "Plaintiff"), is presently a resident of the City and State of New York, residing in Richmond County.
2. Upon information and belief, Defendant **ERIN CASSIDY**, is a resident of the City, State and County of New York.
3. Upon information and belief, the Defendant, Police officer **DAMARR MCBEAN**, Shield # 2490, was and is an employee of the New York City Police Department.
4. Upon information and belief, Defendant, **CHRISTOPHER MCDERMOTT** was and is member of the New York City Police Department.

5. Upon information and belief, **Defendant Lt. MARIA SALAS** was and is a member of the New York City Police Department.
6. Upon information and belief, **Sgt. WRIGHT**, was and is a member of the New York City Police Department.
7. Upon information and belief, that at all times, hereinafter mentioned, the Defendant, **THE CITY OF NEW YORK**, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
8. Upon information and belief, that at all times, hereinafter mentioned, the Defendant, **THE CITY OF NEW YORK**, its agents, servants and employees operated, maintained and controlled the Police Department of The City of New York, and all the police officers thereof, including defendants Police officers **JOHN AND/OR JANE DOES 1-10 of the 67th PRECINCT**.
9. Upon information and belief, at all times hereinafter mentioned, and on or prior to November 20th, 2013, Defendant, **THE CITY OF NEW YORK**, as a Police Officer, employed Defendants, Police Officer **JOHN AND/OR JANE DOES 1-10**.
10. This action arises both under the United States Constitution, particularly under provisions of the Fourth and Fourteenth Amendments to the Constitution of the United States, and under federal law, particularly the Civil rights Acts, Title 42 of the United Code, Section 1983, 1981, 1988, 1985(3) et seq. and state law for malicious prosecution, abuse of process, negligent infliction of emotional distress,

negligent hiring, training, and supervision of police officers, permitting unlawful police practices, and racial discrimination, to name a few of the causes of action.

11. This action also arises under the rights under the Constitution and laws of the State of New York.
12. Each and all of the acts of the Defendants alleged herein were done by the defendants, their agents, servants and employees, and each of them, as individuals and in their official capacities as police officers under the color and pretense State law, the statutes, ordinances, regulations, customs and usages of the State of New York, the **CITY OF NEW YORK** and the County of Kings, and under the authority of their office as police officers of said State, City and County.
13. The amount in controversy is \$750,000 exclusive interest.

PENDANT STATE CLAIMS:

14. The notice of Plaintiff's claim for damages for false arrest, violation of Civil rights, negligence in hiring and retaining, negligence in performance and negligence in training and supervising, the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose was duly served upon the Comptroller Defendant **THE CITY OF NEW YORK** on the day of January 6, 2017.
15. That more than 30 days have elapsed since the Notice of Claim has been served upon Defendants **CITY OF NEW YORK** and other defendants and said defendants have neglected to or refused to make any adjustments or payment thereof; hence, this action is commenced within one year and 90 days after the cause of action arose.

AS AND FOR FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF
FALSE ARREST AND FALSE IMPRISONMENT:

16. The Plaintiff, **AHMED ELSHERIF**, hereby incorporates by reference each and every preceding paragraph 1-15 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.
17. That on or about August 16, 2016, Plaintiff, **AHMED ELSHERIF** (Hereinafter "Plaintiff"), was CAUSED to be falsely arrested at the 13th Precinct merely because he went there to file a complaint of being attacked by one of his female passengers, one Erin Cassidy who had assaulted him on February 23, 2016.
18. Plaintiff had called 911 on February 23, 2016, at or near East 27th Street between 5th and Madison in Manhattan after Ms. Cassidy broke the skin on right hand, requiring treatment from an ambulance service.
19. When police officers arrived on the scene after Plaintiff's 911 call to them, they refused to arrest Ms. Cassidy because she was a white female and Plaintiff appeared to be a Muslim or Arabic male.
20. Months later, the police arrested Plaintiff at the 13th Precinct because he had elected to follow through with the arrest of his female passenger who assaulted him on February 23, 2016, by scratching and breaking the skin on his right hand.
21. Plaintiff was thereafter fingerprinted and was caused to attend court proceedings until the charges filed against him were dismissed on 10/11/2016.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF
NEGLIGENCE IN TRAINING AND SUPERVISING:

22. Plaintiff hereby incorporates by reference each and every preceding paragraph 1-21 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.
23. That on or about February 23, 2016, was assault by his female passenger Erin Cassidy at or near East 27th Street between 5th and Madison Avenues in Manhattan.
24. When police officers arrived on the scene after Plaintiff's 911 call to them, they refused to arrest Defendant Erin Cassidy because she was a white female and Plaintiff appeared to be a Muslim or Arabic male.
25. Months later, the police arrested Plaintiff at the 13th Precinct because he had elected to follow through with the arrest of his female passenger who assaulted him on February 23, 2016, by scratching and breaking the skin on his right hand.
26. That the Defendant, **THE CITY OF NEW YORK**, their agents, servants and employees, carelessly and recklessly failed to properly train and supervise their employees, in particular, the individually name named Defendants Police Officer **JOHN AND /OR JANE DOES 1-10 of the 13th PRECINCT** in that they failed to train their employees to control their tempers and exercise the proper deportment and temperament; and to otherwise act as reasonable, prudent police officers; failed to give them proper instruction as to their deportment, behavior, and conduct as representatives of their employers; and, in that the Defendants, their agents, servants and employees were otherwise reckless, careless and negligent in the performance of their duties.

27. That the aforesaid occurrence, to wit: the false arrest and imprisonment, resulting injuries to mind and body there-from were caused wholly and solely by reason of the negligence of the Defendant, its agents, servants and employees without any negligence on the part of the Plaintiff.
28. That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered emotionally and mentally distressed and so remains.

AS AND FOR A THIRD CAUSE OF ACTION
FOR MALICIOUS PROSECUTION

29. The Plaintiff, hereby incorporates by reference each and every preceding paragraph 1-28 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.
30. That on or about August 16, 2016, Plaintiff, AHMED ELSHERIF (Hereinafter "Plaintiff"), was CAUSED to be falsely arrested at the 13th Precinct merely because he went there to file a complaint of being attacked by one of his female passengers, one Erin Cassidy who had assaulted him on February 23, 2016.
31. Plaintiff had called 911 on February 23, 2016, at or near East 27th Street between 5th and Madison in Manhattan after Defendant Erin Cassidy broke the skin on right hand, requiring treatment from an ambulance service.
32. When police officers arrived on the scene after Plaintiff's 911 call to them, they refused to arrest Ms. Cassidy because she was a white female and Plaintiff appeared to be a Muslim or Arabic male.

33. Months later, the police arrested Plaintiff at the 13th Precinct because he had elected to follow through with the arrest of his female passenger who assaulted him on February 23, 2016, by scratching and breaking the skin on his right hand.
34. Plaintiff was thereafter fingerprinted and was caused to attend court proceedings until the charges filed against him were dismissed on 10/11/2016.

AS AND FOR A FOURTH CAUSE OF ACTION
ASSAULT AND BATTERY

35. The Plaintiff hereby incorporates by reference each and every preceding paragraph 1-34 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.
36. Plaintiff called 911 on February 23, 2016, at or near East 27th Street between 5th and Madison Avenues in Manhattan. After Defendant Cassidy assaulted Plaintiff, she broke the skin on his right hand, requiring treatment from an ambulance service.
37. Plaintiff did not provoke this assault by Defendant Erin Cassidy.
38. The subject assault was not privileged or otherwise justified.
39. An ambulance came and treated Plaintiff at the scene where he was attacked and assaulted by Defendant Erin Cassidy.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF
FOR CIVIL RIGHT ACTION 42 USC § 1983

40. The Plaintiff hereby incorporates by reference each and every preceding paragraph 1-39 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.

Venue and Jurisdiction

41. The jurisdiction is founded upon the existence of a Federal Question.
42. That this is an action to redress the deprivation under color of state and/or federal statute, ordinance, regulation, custom or usage of right, privilege, and immunity secured to Plaintiff by the First, Fourth and Fourteenth Amendments to the Constitution of the United States 42 U.S.C. § 1983, 1981, 1985 (3) and arising under the Federal Constitution, statutes and laws as well as the laws and statutes of the State and Constitution of New York.
43. That Jurisdiction is founded upon U.S.C § 1331 and § 1343 (3) and (4), this being an action authorized by law to redress the deprivation under the color of statute, ordinance, regulation, custom or usage of a right, privilege, and immunity secured to the Plaintiff by the First, Fourth, and Fourteenth amendments to the Constitution of the United State 42 U.S.C. § 1983, 1981, 1985 (3), 1988 and arising under the federal constitutional laws and statutes as well as the laws, statutes, and constitution of the State of New York.
44. The amount in controversy exceeds, exclusive of interest and costs are \$75,000, the jurisdictional limits of this and any other court having jurisdiction.
45. The Plaintiff did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned and deprived of his constitutional rights as set

forth in the Constitution of the United States, particularly 42 USC § 1981, 1983, 1985 (3), and 1988 and the Constitution of the State of New York.

46. That on or about February 23, 2016, Plaintiff, was assaulted by a female passenger at or near 27th street between 5th and Madison Avenues in Manhattan.
47. Plaintiff called 911 and the police arrived.
48. Plaintiff was ridiculed for calling the police on a woman even this woman assaulted him and broke his skin.
49. The police refused to arrest Defendant Erin Cassidy.
50. The police also refused to arrest Erin Cassidy because she was a white female and he appeared to be an Arabic or Muslim male. Plaintiff is from Egypt.
51. Plaintiff was forced to file a complaint with Internal Affairs who investigated this incident.
52. The result of that investigation caused Plaintiff's arresting officer, Damarr McBean as well as the officers who responded to the 911 call and all other Defendants to be disciplined with letters placed in their respective files because of their outrageous conduct in discriminating against Plaintiff and not following proper protocol and procedure.
53. In engaging in the conduct described above, in maliciously prosecuting, detaining and otherwise prosecuting Plaintiff, Defendant, Police Officers and all of them deprived Plaintiff of his civil rights pursuant to 42 U.S.C.A. § 1983. Furthermore, as police officers employed by Defendant **CITY OF NEW YORK**, said Defendants Police Officers were acting under the color of State law.
54. That the aforementioned misuse of authority and power by Defendants Police Officers **JOHN/JANE DOES 1-10 of the 13trh PRECINCT** were egregious and

shocking to the conscience. As a direct result, Plaintiff was caused to undergo the humiliation and indignities resulting from his unlawful confinement against will; and was caused and will continue to undergo and endure severe mental anguish, humiliation and economic hardship as a consequence thereof.

55. Such deprivation were in violation of the rights secured to Plaintiff by the First, Fourth, Fourteenth Amendments of the United States constitution and by Title 42 U. S.C.A § 1983 and the laws, ordinances and statues of the State of New York to wit:

- a. The Defendants, their agents, servants and employees, wrongfully maliciously prosecuted Plaintiff.
- b. Defendants wrongfully detained Plaintiff.
- c. Defendant acted pursuant to an official policy even though unwritten that they understood authorized them to pursue to conduct warrantless searches of premises without a warrant, without probable cause, and without justification because such conduct was condoned by the NYPD.
- d. The arrest, imprisonment and malicious prosecution of Plaintiff was not justified by probable cause or other legal privilege; Defendants, their agents, servants and employees, acting under the color of law and under authority of their Office as Police Officers for the City falsely arrested the Plaintiff knowing that the Plaintiff had not violated any part of the New York State Penal Law.
- e. That the Defendant, their agents, servants and employees failed to adequately and properly hire, retain, supervise, discipline or in any other

way control the behavior and performance of the Defendants, their agents, servants and employees

- f. That Defendants, their agents, servants and employees is in their failure to enforce the laws of the state of New York did act with reckless disregard to Plaintiff's rights in that they did not exercise that degree of due care which prudent and reasonable individuals would show in executing the duties of the Defendants.
- g. That Defendant, their agents, servants and employees in their failure to hire, train, supervise and discipline or in any other way control the Defendants in the exercise of their functions to enforce the law of the state and **CITY OF NEW YORK**, did act willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of the state of New York including Plaintiff.
- h. That the acts of the Defendants, their agents, servants and employees relative in failing to properly discipline, hire and train their employees, agents and servants is a presents a clear and present danger to the citizens of the City and State of New York.

56. As a result of the aforesaid Defendants' deprivation of Plaintiff's civil rights, Plaintiff has been damaged in the sum exceeds the Jurisdictional limits of all lower courts.

57. The Defendants, their agents, servants and employees, wrongfully and falsely arrested, imprisoned and detained the Plaintiff without any right, privilege or grounds.
58. Probable cause or other legal privilege or grounds did not justify the arrest and imprisonment. Defendants their agents, servants and employees, acting under the color of law and under authority of their office as Police Officers for the city falsely arrested the Plaintiff knowing that the Plaintiff had not violated any part of the New York State Penal Law.
59. That by their wanton conduct, Defendants showed a blatant disregard for Plaintiff's Constitutional rights.
60. That the Plaintiff demands attorney fees should prevail in his 42 USC Section 1983 claims against the individually named police officers and **CITY OF NEW YORK**.

AS AND FOR AN SIXTH CAUSE OF ACTION
ON BEHALF PF PLAINTIFF
CIVIL RIGHTACTIONS 42 USC § 1985 (3):

61. The Plaintiff hereby incorporates by reference each and every preceding paragraph 1-60 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.
62. That on or about February 23, 2016, Plaintiff, was assaulted by a white female passenger at or near 27th street between 5th and Madison Avenues in Manhattan.
63. Plaintiff called 911 and the police arrived.
64. Plaintiff was ridiculed for calling the police on a woman even this woman assaulted him and broke his skin.
65. The police refused to arrest Erin Cassidy.

66. The police also refused to arrest Erin Cassidy because she was a white female and he appeared to be an Arabic or Muslim male. Plaintiff is from Egypt.
67. Plaintiff was forced to file a complaint with Internal Affairs who investigated this incident.
68. The result of that investigation caused Plaintiff's arresting officer, Damarr McBean as well as the officers who responded to the 911 call and all other Defendants to be disciplined with letters placed in their respective files because of their outrageous conduct in discriminating against Plaintiff and not following proper protocol and procedure.
69. In engaging in the conduct described above, in maliciously prosecuting, detaining him and otherwise prosecuting Plaintiff, Defendant, Police Officers and all of them deprived Plaintiff of his civil rights pursuant to 42 U.S.C.A. § 1983. Furthermore, as police officers employed by Defendant **CITY OF NEW YORK**, said Defendants Police Officers were acting under the color of State law.
70. That the aforementioned misuse of authority and power by Defendants Police Officers **JOHN/JANE DOES 1-10 of the 13trh PRECINCT** were egregious and shocking to the conscience. As a direct result, Plaintiff was caused to undergo the humiliation and indignities resulting from his unlawful confinement against will; and was caused and will continue to undergo and endure severe mental anguish, humiliation and economic hardship as a consequence thereof.
71. Such deprivation were in violation of the rights secured to Plaintiff by the First, Fourth, Fourteenth Amendments of the United States constitution and by Title 42 U. S.C.A § 1983 and the laws, ordinances and statues of the State of New York to wit:

- a. The Defendants, their agents, servants and employees, wrongfully maliciously prosecuted Plaintiff.
- b. Defendants wrongfully detained Plaintiff.
- c. Defendant acted pursuant to an official policy even though unwritten that they understood authorized them to pursue to conduct warrantless searches of premises without a warrant, without probable cause, and without justification because such conduct was condoned by the NYPD.
- d. The arrest, imprisonment and malicious prosecution of Plaintiff was not justified by probable cause or other legal privilege; Defendants, their agents, servants and employees, acting under the color of law and under authority of their Office as Police Officers for the City falsely arrested the Plaintiff knowing that the Plaintiff had not violated any part of the New York State Penal Law.
- e. That the Defendant, their agents, servants and employees failed to adequately and properly hire, retain, supervise, discipline or in any other way control the behavior and performance of the Defendants, their agents, servants and employees
- f. That Defendants, their agents, servants and employees is in their failure to enforce the laws of the state of New York did act with reckless disregard to Plaintiff's rights in that they did not exercise that degree of due care which prudent and reasonable individuals would show in executing the duties of the Defendants.

- g. That Defendant, their agents, servants and employees in their failure to hire, train, supervise and discipline or in any other way control the Defendants in the exercise of their functions to enforce the law of the state and **CITY OF NEW YORK**, did act willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of the state of New York including Plaintiff.
- h. That the acts of the Defendants, their agents, servants and employees relative in failing to properly discipline, hire and train their employees, agents and servants is a presents a clear and present danger to the citizens of the City and State of New York.
72. As a result of the aforesaid Defendants' deprivation of Plaintiff's civil rights, Plaintiff has been damaged in the sum exceeds the Jurisdictional limits of all lower courts.
73. The Defendants, their agents, servants and employees, wrongfully and falsely arrested, imprisoned and detained the Plaintiff without any right, privilege or grounds.
74. Probable cause or other legal privilege or grounds did not justify the arrest and imprisonment. Defendants their agents, servants and employees, acting under the color of law and under authority of their office as Police Officers for the city falsely arrested the Plaintiff knowing that the Plaintiff had not violated any part of the New York State Penal Law.

75. That by their wanton conduct, Defendants showed a blatant disregard for Plaintiff's Constitutional rights.
76. That the Plaintiff demands attorney fees should prevail in his 42 USC Section 1983 claims against the individually named police officers and **CITY OF NEW YORK**.
77. That at all times hereinafter mentioned, that Defendants Police Officers **JOHN/JANE DOES 1-10 of the 13th PRECINCT** each of them, separately and in concert conspired for the purpose of depriving, either directly or indirectly, Plaintiff of the equal protection of the laws, or of equal privileges and immunities under the laws in that said Defendants did engage in the illegal conduct hereinbefore described and thus did deprive the Plaintiff of the equal protection of the laws, or of equal privileges and immunities secured to Plaintiff by the First and Fourteenth Amendments to the Constitution of the United States and the Laws of the United States. The unlawful and illegal conduct of the Defendants deprived the Plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and the State of New York:
- a. The right of the Plaintiff to be secure in their persons and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments of the Constitution of the United States
 - b. the right of the Plaintiff to be informed of the nature and cause of the accusation against him so secured to them under the sixth and fourteenth amendments of the Constitution of the United States; and,

c. the right of the Plaintiff not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the law secured by the Fourteenth Amendment to the Constitution of the United States.

78. That by reason of the aforesaid violations, conspiracy and false arrest, and false imprisonment, and battery and otherwise discriminatory treatment in violation of both the United States and New York State Constitutions, the Defendants conspired together to enter into a nefarious scheme to wrongfully deprive the Plaintiff and compelled him to abandon his rights and privileges as provided to him in the Constitutional rights as set forth in the Constitution of the State of New York, and laws thereto, the Defendants, violated 42 U.S.C. §§ 1981, 1983, 1985 (3) in that the Defendants acted as persons who under color of any statute, ordinance, regulation, custom or usage of the **CITY OF NEW YORK**, subjected or caused to be subjected, a citizen of the United States or other person within the jurisdiction, particularly the Plaintiff thereof to be deprived of his rights, privileges or immunities received by Constitution of the United States of America, and provided them by the Constitution of the State of New York; were subjected to Great indignities and humiliation, and pain and distress of mind and body and was held up to scorn and ridicule, injured in his character and reputation, was prevented from attending his usual business and vocation and was injured in his reputation in the community and the acts aforementioned were committed with the aim of injuring and damaging the Plaintiff.

79. That by reason of the aforesaid violations, to wit the false arrest, false imprisonment caused by the Defendant who wrongfully deprived the Plaintiff and compel his abandon his rights and privileges as provided to his in the Constitution of the United States of America, and in the Constitution of the United States of America, and in the Constitution of the State of New York, and laws thereto, the Defendants, acting within the scope of their authority and without any probable cause, caused the Plaintiff great harm because of the aforesaid illegal conduct.

AS AND FOR THE SEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF
FOR ATTORNEY FEES PURSUANT TO 42 USC SECTION 1988:

80. The Plaintiff hereby incorporates by reference each and every preceding paragraph 79 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.
81. Should Plaintiff be victorious upon his claims, he intends to assert a claim for attorney fees on his federal claims pursuant to 42 USC section 1983, 1981, 1985 (3) et seq.

AS AND FOR THE EIGHT CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DISRMINATION PURSUNT TO
ADMINISTRATIVE CODE of CITY OF NEW YORK 8-107 ET
SEQ.

82. The Plaintiff hereby incorporates by reference each and every preceding paragraph 81 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.
83. Plaintiff was discriminated against because he was a Muslim or Arabic looking male.

84. Despite the fact that Defendant Erin Cassidy broke the skin on Plaintiff's hand with her fingernails, she was not arrested on February 23, 2016.
85. In fact, Plaintiff was arrested on or about August 16, 2016, at the 13th Precinct, when he attempted to follow through on his complaint against Defendant Erin Cassidy.
86. However, Defendant police officers refused, ridiculing him for complaining because Ms. Cassidy was a white female and he was a minority male.

AS AND FOR THE NINTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF
FOR RACIAL DISCRIMINATION PURSUANT TO 42 USC SECTION
1981:

87. The Plaintiff hereby incorporates by reference each and every preceding paragraph 1-86 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.
88. That Defendant City of New York Defendant police officers in refusing to arrest Erin Cassidy because she was a white female because Plaintiff appeared to be a Muslim or Arabic male was discriminatory conduct under the facts of this case.
89. Plaintiff was assaulted by a Defendant Erin Cassidy who intentionally broke his skin with her finger nails causing redness, swelling, and bleeding on February 23, 2016 .
90. Plaintiff demands judgment on the complaint for his injuries suffered herein.
91. That upon information and belief, the police do not treat other similarly situations involving persons whom are not African or African Americans in the same manner that

they treated the Plaintiff herein by negligently arresting Plaintiff without a proper and thoroughly investigation.

92. That by reason of the aforesaid violations, the Plaintiff requests the following relief:

- a. Compensatory damages in the sum, which exceeds the jurisdictional limits of all lower courts.
- b. Punitive damages in the sum, which exceeds the jurisdictional limits of all lower courts.
- c. An award of reasonable attorney's fees, costs and disbursements;
- d. Plaintiff requests a trial by jury of all issues involved in this complaint;
- e. Such other and further relief as this Court may deem just, meet and proper under the circumstances.

Dated: New York, NY 10007
February 22, 2017



Ronald Paul Hart, Esq.
Ronald Paul Hart, P.C.
225 Broadway, Suite 2515
New York, NY 10007
Tel: (212) 766-1443
Fax: (212) 766-0943
Email: ronaldphartesq@gmail.com

VERIFICATION

AHMED ELSHERIF, being duly sworn, deposes and states:

1. I am the Plaintiff in this action and reside in Richmond County.
2. I have read the within Verified Complaint and state that same is true in all respects.
3. I further state that all matters referenced as "upon information and belief," are true to the best of my knowledge after a reasonable inquiry and investigation upon the facts known to me at the time of occurrence.
4. I state that I have read the within Verified Complaint with demand for a jury trial, and know the contents to be true.

Ahmed Elsherif
AHMED ELSHERIF

Sworn to before me
this 22nd day of February 2017

Ronald Paul Hart

Notary Public

RONALD PAUL HART
Notary Public, State of New York
#05-00154299788
Qualified in New York County
Commission Expires July 27, 2018

RP H

**SUPREME COURT OF THE CITY OF NEW YORK
COUNTY OF NEW YORK****INDEX NUMBER:****AHMED ELSHERIF**

Index #:

Plaintiff,

SUMMONS

-against-

**THE CITY OF NEW YORK
POLICE OFFICERS DAMARR MCBEAN
SHILED # 2490; POLICE OFFICER CHRISTOPHER
MCDERMOTT; LT. MARIA SALAS;
SGT WRIGHT; JANE DOE NUMBERS 1-10
OF THE 13TH PRECINCT AND
ERIN CASSIDY**

Defendants.

SUMMONS AND COMPLAINT**RONALD P. HART, ESQ.
Attorney(s) for Plaintiff
225 Broadway, Suite 2815
New York, N.Y. 10007
Tel. (212) 766-1443****To Attorney(s) for Defendant
Signature Rule 130-1.1-a)****Service of a Copy of the Within Summons and Complaint is Hereby Admitted.****Dated: _____
Attorney(s) for Respondents****Counselor(s): Please Take Notice that a****NOTICE OF ENTRY that the within is a true copy of****NOTICE OF SETTLEMENT****that an order for _____ of which the within is a true copy will be presented for settlement to
the HON. _____ one of the justices of the within named Court at
on the _____ day of _____ 2017 at 9:30 A. M.**